

Akshay Choudhary vs Smt. Pratibha Choudhary on 6 April, 2021

Author: Prashant Kumar Mishra

Bench: Prashant Kumar Mishra

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

First Appeal (M) No. 181 of 2018

Akshay Choudhary, S/o. Ramswaroop Choudhary, aged about 27 years, R/o.
D/39, Antyoday Nagar, Bikaner, Rajasthan

---- Appellant/Plaintiff

Versus

Smt. Pratibha Choudhary, W/o. Akshay Choudhary, D/o. Virendra Singh Beniwal,
aged about 28 years, R/o. Plot No. 6 & 7, Sardar Patel Marg, Awadhपुरi Colony,
Risali, Bhilai, Tahsil and District Durg (C.G.)

---- Respondent/Defendant

For Appellant : Mr. Manoj Paranjpe, Advocate.

For Respondent : Mr. Prateek Sharma, Advocate.

Both the parties are present in person before the Court Hon'ble Shri Justice Prashant Kumar Mishra Hon'ble Shri Justice N.K. Chandravanshi Judgment on Board by Justice Prashant Kumar Mishra 06/04/2021

1. This is an appeal under Section 19 (1) of the Family Court Act, 1984 (henceforth "Act, 1984") challenging the impugned judgment and decree dated 06.07.2018 passed by First Additional Principal Judge, Family Court, Durg dismissing the appellant's/plaintiff application for grant of divorce under Section 13 of the Hindu Marriage Act, 1955 (henceforth "Act, 1955").

2. During pendency of the appeal, the parties have settled their dispute outside the Court. An application for accepting the compromise signed by the appellant together with affidavit of the appellant and the respondent were filed on 18.02.2021. However, in absence of duly constituted application under Section 13-B of the Act, 1955, parties were allowed time to do the needful.

3. Both the parties are present in the Court. They have filed an application under Section 13-B of the Act, 1955 for dissolution of marriage by decree of divorce by mutual consent as per terms and

conditions, which are reproduced herein :-

"a. ;g fd le>kSrs ds varxZr izFke i{k us f}rh; i{k ls fMekaM M^aki la;k 605936 LVsV cSad vkWQ bafM;k ;i;s 25]00]000@& dk f}rh; i{k izfrHkk csuhoky dks [kkrk la;k 20306512775 esa ns; dks tks f}rh; i{k ,oa iq=h fuis{k ds thou i;ZUr Hkj.k iks"k.k HkRrs ds :i esa ekuuh; mPp U;k;ky; fcykliqj ds le{k nksuks i{k fookg foPNsn ds fy;s lger gksus ij ekuuh; U;k;ky; ds vkns'k ls f}rh; i{k mDr fMekaM M^aki dks izkIr dj jkf'k ;i;s 25]00]000@& dk vkgj.k djsxhA ;g fd MhMh uacj 605936 LVsV cSad vkWQ bafM;k ;i;s 25]00]000@& f}rh; i{k dks ekuuh; mPp U;k;ky; ds le{k gLrkarfjr fd;k tkosxk A b. ;g fd efgyk iqfyl Fkkuk] fedkusj esa izFke lwpuk fjiksVZ la;k 28@2017 ds vUos"k.k ds varxZr fnukad 26-02-2017 dks ftl L=h/ku dh cjenxh dh Fkh mDr esa ls dze'k% 1- lksus dk VsoVk 2- lksus dk eaxy lw= 3- lksus dh rchrh ¼ykSdsV TkSlk½ 4 ,d lksus dh ukslihu o 5 ,d pkanh dh ukslihu izFke i{k izkIr djsxk ftlesa f}rh; i{k dh lgefjr gS A mDr cjenxh dh QnZ dk 'ks"k L=h/ku f}rh; i{k izkIr djsxk A izFke o f}rh; i{k bl dafMdk ds ifjiky gsrq vxzlj gksaxs o fdll Hkh izdkj ds vkifRr ugha djsaxsA c. ;g fd iq=h fuis{k f}rh; i{k ds ikl jgsxh rFkk mlh ij mlds Hkj.k iks"k.k ,oa fookg vkfn dk nkf;Ro gksxk A d. ;g fd varfje Hkj.k iks"k.k dh jkf'k dh vnk;xh izFke i{k }kjk f}rh; i{k dks nh tkrh jgh gS A ;g fd mDr varfje Hkj.k iks"k.k dh jkf'k tks vkt fnukad rd 'ks "k gS ;i;s 40]000@& vnk;xh dk nkf;Ro izFke i{k ij jgsxk o mDr jkf'k dh vnk;xh izFke i{k }kjk f}rh; i{k dks ,d ekg ds vanj vnk djsxk o fdll Hkh izdkj dh pwd vnk;xh ds laca/k esa ugha djsxk vU;Fkk ekuuh; mPp U;k;ky; ds vkns'k dh voekuuk ds fy, mRrjnk;h gksxk A e. ;g fd f}rh; i{k izFke i{k ds fo:) fd;s x;s lHkh izdj.kksa dks tks fofHkUu U;k;ky;ksa esa yafer gSa mUgsa ekuuh; mPp U;k;ky; ds vkns'k ds ,d ekg ds vanj okil ysus dh izfdz;k izkjaHk djsxk o lacaf/kr U;k;ky; esa mifLFkr gksdj le>kSrk vkosnu o izdj.k okil ysus gsrq vkosnu o vU; fof/kd dk;Zokgh ,d ekg ds vanj izkjaHk djsxk vU;Fkk ekuuh; mPp U;k;ky; ds vkns'k dh voekuuk ds fy, mRrjnk;h gksxkA""

4. Both the parties have reiterated the above terms & conditions before the Court and the respondent/wife has shown to the Court the draft of Rs.25,00,000/- handed over by the appellant/husband to her.

5. Since the parties were married on 13.11.2013 but are residing separate since 29.7.2015 and there is no possibility of their re-union and both of them have settled their dispute as per the terms and conditions set-forth above, we are satisfied that it would not be desirable to await them for completion of the cooling-off period of six months.

6. Hon'ble Supreme Court in the matter of Amardeep Singh v. Harveen Kaur¹ 1 (2017) 8 SCC 746 has held that when the parties are residing separate for substantial length of period and there is no possibility of their re-union, cooling-off period can be waived.

7. The demand draft of Rs.25,00,000/- handed over to the respondent/wife is valid till tomorrow and looking to the Covid-19 pandemic situation, it may remain encashed, therefore, in such eventuality, appellant/husband undertakes to re-validate the draft for a further period of three months.

8. In view of the above, we allow the application under Section 13-B of the Act, 1955 and dissolve their marriage solemnized on 13.11.2013 by decree of divorce by mutual consent. The terms and conditions of settlement shall form part of decree.

9. The appeal is disposed of in the above stated terms.

10. Decree be drawn up accordingly.

Sd/-
(Prashant Kumar Mishra)
Judge

Sd/-
(N.K. Chandravanshi)
Judge

Dubey/-